

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

January 27, 2020

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Ken Esquibel, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited. Mayor Orr recognized Boy Scout Troop 221 was in attendance. Mayor Orr asked for moment of silence for the 75th anniversary of the liberation of the Auschwitz-Birkenau concentration camp.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. Shanor, and pursuant to support received by Mr. Case and Mr. Cook, agenda item #11 was removed from the Consent Agenda. Upon request by Mr. Laybourn, and pursuant to support received by Dr. Rinne and Mr. Roybal, agenda item #15 (c) was removed from the Consent Agenda. Upon request by Mr. Shanor, and pursuant to support received by Mr. Case and Mr. Cook, agenda item #15 (e) was removed from the Consent Agenda. Mr. Luna moved to approve remaining items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Rinne voting “no”.

Mayor Orr opened a public hearing for a proposed sale of real property owned by the City of Cheyenne, described as Lots 1 through 12, Block 2, Roberts Place Addition, City of Cheyenne, Laramie County, Wyoming, and more commonly referred to as 610 West 7th Street, Cheyenne, Wyoming, for the proposed price of \$569,780.00, to the Laramie County School District Number One for the essential future development of a new elementary school. Teresa Moore, Community Recreation & Events Director, provided a presentation showing the property location which is adjacent to Cole Elementary school. Ms. Moore reported Laramie County School District Number One (LCSD #1) would like to demolish the old school and construct a new elementary school in that location in the future. Ms. Moore provided a detailed history of the City’s Neighborhood Facilities building which was previously occupied with city staff, noting the building sustained water damage and clerical staff were relocated. A portion of the building was secured for continuation of the gymnastics program. She further noted that funding to remediate the building is not available and a location has yet to be identified for relocation of the gymnastics program. She advised staff is currently looking at proceeds of the sale and other funding sources to construct a new gymnasium facility to be built on property given to the City near the Ice and Events Center. Ms. Moore advised that an interim gymnastics program can temporarily remain on site or relocate at the Youth Activity Center. Dennis Auken LCSD #1, reported on negotiations with the City to purchase the property and plans to construct a new elementary school have been on-going with the

City for some time. Mr. Auken explained that currently, the state has not yet approved the construction funding and advised other school district programs and activities may be held in the building. Carla Gregorio, former principal at Hebard Elementary, spoke in support of the agreement and expressed the need for a new elementary school in the area, noting she believes the school district would not displace the thriving City gymnastics program immediately and would allow them time to relocate. There being no further comments or input and purpose of the hearing having been met, Mayor Orr closed the hearing.

[CA] Minutes from Regular Meeting of the Governing Body on January 13, 2020. Motion (per Consent Agenda) carried.

ORDINANCE – 3rd READING – Annexing to the City of Cheyenne, Wyoming, the North 1/2 of Lot 4, Williams Subdivision, Laramie County, Wyoming (located northeast of the intersection of Marshall Road and Storey Boulevard). Reporting for Public Services Committee, Mr. Shanor moved to approve on third and final reading, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body. (#4292)

ORDINANCE – 3rd READING – Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from County LR Low-density Residential to City LR Low-density Residential for the North 1/2 of Lot 4, Williams Subdivision, Laramie County, Wyoming (located northeast of the intersection of Marshall Road and Storey Boulevard). Brandon Swain, applicant, complemented the City’s Planning & Development staff for their efforts. Mr. Shanor moved to approve on third and final reading, seconded by Mr. Luna. Charles Bloom, Planning and Development Director, upon inquiry, stated staff worked with the applicant to create a development agreement to address access concerns. Mr. Bloom advised the agreement addresses what type of development can be located in the area and will come to the governing body for approval at the February 10th City Council meeting. Motion carried. Voting “yes” – all members of the governing body. (#4293)

ORDINANCE – 2nd READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map of the Unified Development Code, changing the zoning classification from LR Low Density Residential to NR-2 Neighborhood Residential - Medium Density for the west half of Lot 2 and all of Lot 3, Sunnyside Addition, 8th Filing, Cheyenne, Wyoming (located at the southeast corner of Dell Range Blvd. and Van Buren Ave.). Patrick Rudd, #1 Properties, representing the applicant, advised he was available for questions. Nancy Monckton, adjacent landowner, voiced concerns with waterflow in the alley, noted parking concerns with any potential new development, and questioned trash receptacle placement and retrieval by the Sanitation Department. Ms. Monckton advised she supports development of low density residential (duplex) but nothing larger. Mr. Shanor moved to approve on second reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Amending Chapters 8.40, Food and Food Service Establishments, within Title 8, Health and Safety, of the Municipal Code of the City of Cheyenne,

Wyoming, and Chapters 10.12, Administration and Enforcement, 10.16, Arrest and Citation Procedure, 10.52, Stopping, Standing and Parking Generally, 10.60, Parking Limitations, 10.64, Loading and Unloading, 10.68, Critical Traffic and Parking Areas, within Title 10, Vehicles and Traffic, of the City of Cheyenne Municipal Code. Mr. Shanor moved to approve on second reading, seconded by Mr. Roybal. Mr. Shanor moved to postpone to February 10, 2020, seconded by Mr. Luna. Comments were made regarding parking program efforts for the past several years. Mr. Shanor advised he has received concerns and information from business owners in the downtown area and that the postponement would allow for additional public input and research on parking issues. The public was encouraged to contact the City Attorney's office with any concerns or comments. Motion to postpone carried. Voting "yes" – all members of the governing body.

RESOLUTION – Reappropriating the fiscal year 2020 budget of the City of Cheyenne according to the provisions of W. S. §16-4-112 & §16-4-113. Mr. White moved to adopt, seconded by Mr. Esquibel. Mr. Shanor commented on concerns of using general fund reserves for a federal transit grant match through a mid-year reappropriation process. Comments were made regarding revenue coming in below projections and current balance of general fund reserves. Robin Lockman, City Treasurer, upon inquiry, reported this particular grant fund can be complicated to balance due to timing of expenditures and receipt of revenues, noting there was a period of time the fund wasn't balanced in 2017. Ms. Lockman explained the 50/50 grant match is a requirement and provided additional information relating to grant and match funding, noting the City cannot have a negative balance. She further advised that going forward, it's a 50/50 grant match of what the program costs for salaries, fuel, equipment, etc., and that Transit Division grant bus purchases require a 20% match. Ms. Lockman reported revenues are currently below projection by approximately \$800,000.00 and are showing a trend of slowing down, noting lottery proceeds have been less than last year. Upon further inquiry, Ms. Lockman advised revenue from sale of property is considered as one-time funding and not annual revenue. Motion to adopt carried. Voting "yes" – all members of the governing body with the exception of Mr. Cook voting "no". (#6035)

[CA] RESOLUTION – Authorizing the Mayor and City Clerk to execute State Historic Preservation Office Certified Local Government (CLG) Grant Agreements for two 2020 CLG Grants (Board Training to attend two Historic Preservation conferences, and the Cheyenne Façade Improvement Program Project). Motion (per Consent Agenda) carried. (#6036)

[CA] RESOLUTION – Authorizing the Mayor and City Clerk to accept for ownership, development and maintenance, land from the Sweetgrass Land Co., LLC for the purpose of greenway and open space use pursuant to the recorded Sweetgrass 1st Filing and Sweetgrass 2nd Filing subdivisions – referred to Public Services Committee. (Sponsor – Mr. Case)

CA] RESOLUTION – Amending Resolution No. 5979 directing the availability of the production of Tchaikovsky's The Nutcracker Ballet at the Cheyenne Civic Center – referred to Finance Committee. (Sponsor – Mr. Case)

[CA] Sponsorship Agreement between the City of Cheyenne and Charles Schwab, Independent Leader Sam Runyan, for a 7 year Stage Sponsorship for the Fridays on the Plaza (FOTP) events (Revenue to the City). Motion (per Consent Agenda) carried (amount not to exceed \$126,000.00). (#7131)

[CA] Volleyball Officiating Agreement between the City of Cheyenne and Officials for Fun Club for adult City league volleyball officiating services during the Winter 2020 season (Recreation Special Revenue Fund). Motion (per Consent Agenda) carried. (#7132)

Memorandum of Understanding between the City of Cheyenne, Wyoming, the City of Cheyenne Board of Public Utilities and the Laramie County Conservation District for the implementation of the design for the Crow Creek Revival Phase I that will improve the aquatic health of Crow Creek. Jeff Geyer, Laramie County Conservation District, expressed appreciation to the City Attorney's office for reviewing the Memorandum of Understanding (MOU) in a timely manner and advised the MOU will allow 3 years of planning and designing to move forward with an anticipated spring implementation of the project. Mr. Geyer advised permits still need to be obtained prior to work being started. Dena Egenhoff, BOPU, advised she is excited about the amount of progression that has taken place since the original agreement was approved and noted positive community engagement. Ms. Egenhoff advised the MOU is a catalyst for Phase I and noted additional phases are currently unfunded, however, they will be seeking federal grant funds as a funding source. Mr. Geyer added they have raised approximately \$600,000.00 and following permitting, excavation of a large amount of material by Happy Jack Rd. and Westland Rd. will be completed to create a stream which will expand the floodplain. Mr. White moved to approve, seconded by Mr. Luna. Comments were made related to the importance of the project for the community, the history of Crow Creek, permitting process, removal of abandoned buildings, improvements to Crow Creek, future EUL development and the relocation of Cowboy Dodge. Motion carried. Voting "yes" – all members of the governing body. (#7133)

Professional Services Agreement between the City of Cheyenne, Wyoming, and AVI Professional Corporation, for the Capitol Basin 26th Street Storm Sewer Extension Design Project (Specific Purpose Option Tax Fund - 2012 Ballot Overages) (Postponed from January 13, 2020). Michael O'Donnell, City Attorney, advised the proposed contract is for project design. Mr. O'Donnell reported there were two options available: Option #1 was to expedite the project which would include installing a storm pipe in the ground prior to 2020 Cheyenne Frontier Days and Option #2 which would cost significantly less doing design work in 2020 which would put the project out to bid this fall and begin work in Spring of 2021. Mr. O'Donnell further advised that Governor Gordon opted to go with Option #2 as it was more fiscally responsible. Clarification was given on design work to be completed by Fall of 2020. Mr. White reported that the motion to approve at the January 21st Finance Committee meeting failed. Mr. White moved to approve in an amount not to exceed \$342,769.00, seconded by Dr. Rinne. Mr. White moved to amend by substitute dated January 21, 2020, seconded by Dr. Rinne. Upon inquiry, Mr. O'Donnell advised the design work is anticipated to be complete by August 2020, the project would then go out for bid in the Fall of 2020, and construction will commence in 2021 when weather allows and is anticipated to be completed late Summer of 2021. Upon inquiry, Thomas Cobb, City Engineer, explained the worse case scenario would be if design work isn't complete by October this year, completion of construction would be done no later than October 2021. Mr. Cobb provided information on what will be included with the project. Comments were made regarding the final step of Capitol Basin Project, review of 1985 flood issues, process of installing storm sewer, worsening weather events and patterns resulting in excessive flooding, other related difficult

engineering projects, importance of the governing body's oversight for extensive engineering projects and grant funding availability relating to design changes to past engineering projects. Motion to amend carried. Voting "yes" – all members of the governing body with the exception of Mr. Laybourn voting "no". Main motion, as amended, carried. Voting "yes" – all members of the governing body with the exception of Mr. Laybourn voting "no". (#7134)

Purchase and Sale Agreement between DSK Ranch, LLC, and the City of Cheyenne for real property described as a Portion of the East Half of the East Half (E½E½) of Section 35, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, in the amount of \$2,500,000.00 to be used as a future City park in accordance with the terms of the 2017 1% Specific Purpose Sales and Use Tax Ballot and Election (Specific Purpose Option Tax Fund - 2017 Ballot). Michael O'Donnell, City Attorney, provided additional property value documentation that included a land analysis prepared by Brendan Ames, Chief Economic Development Officer, and a 2017 Appraisal Report from Accuvalue, LLC. Mr. O'Donnell advised he would be referring to this agreement as the "East Project" as it was on the 2012 Specific Purpose Tax ballot for the purpose of acquiring a track of land owned by DSK Ranch, LLC for a park on the east side of Cheyenne. He provided a presentation that showed the location of the land that is proposed for purchase, description of wetland areas, location of proposed ball fields, and noted an existing tunnel is anticipated to be used as access to the greenway path. He further advised there is a need for girl's fast pitch softball fields in the community. It was explained there are two tracts of land, one is the proposed purchase and the adjacent land is to be obtained by Laramie County Conservation District which will not be developed, doubling the size of recreational amenity without increasing cost. The tracts of land are connected by a tunnel. Mr. O'Donnell provided detailed information regarding the previous appraisal in the amount of 1.1 million and explained that since that time, review of fair property value has been researched. He further explained that the original appraisal did not take into consideration that it would be used for recreation amenities and was appraised as bare ranch land. The new analysis is fair market value and takes in consideration properties that are similar in use. Further comments were offered related to continued development around the proposed park land, existing water that could be used for water features, accessibility of land and existing City utilities available on north and west portions of property. Mr. O'Donnell explained the seller has reduced the asking price by \$700,000.00 and has displayed impressive cooperation and patience relating to the sale of the property for the sake of community. Brandan Ames, Chief Economic Development Office, provided detailed information relating to the fair market property valuation document and confirmed the negotiated \$2,500,000.00 price. Dale Keizer, DSK Ranch, LLC, advised he has worked on the project with the City for the past 6.5 years, stating it is now up to governing body to decide whether or not to purchase the property and voiced opposition to postponement. Mr. Keizer, upon inquiry, reported he has been in the development business for 40 years and has owned the proposed property for 20 years. Cody Hess, Hess Development, spoke in support of the agreement for future growth and development in the area, noting he has worked with Mr. Keizer for several years. Mr. White moved to approve, seconded by Mr. Luna. Appreciation was expressed to Mr. Keizer and Mr. O'Donnell on their efforts relating to the project. Concern was expressed regarding purchasing the property based solely on an internal staff analysis of the property and suggestion for a postponement was made for the purpose of obtaining a professional independent cost analysis. Mr. Shanor moved to postpone, seconded by Mr. Roybal. Comments were made in opposition of

a postponement and support for the presented fair market value and negotiated purchase price, support of future greenway connectivity relating to area subdivisions and recreational opportunity. Upon inquiry, Mr. O'Donnell stated in his opinion, real estate professionals value land based on how the property currently exists. Upon inquiry, Mr. Ames provided information on his professional background prior to his employment with the City which included experience of being a real estate agent. He explained he has had preliminary conversations with real estate agents and appraisers who were reluctant to provide an appraisal for various reasons and noted it's difficult to value property for a civic purpose as they generally place a value on land for its current use. Mr. Ames explained that appraisals and market analysis are similar and that an appraiser gets more into details in terms of measurements, etc. Discussion continued on the following topics: Obtaining a formal appraisal/market value, options on how to proceed, growth of the community to the east, lack of and need of recreational amenities in that area, history of the project, possible alternatives, potential for the land purchase to provide multiple recreation opportunities and the current opportunity to create a legacy park. Mr. Keizer responded to an inquiry and confirmed if the item were to be postponed, he would seek other options for the sale or development of the property. Comments were made indicating the price of the property is in line with market value, noting that a realtor won't take certain future plans into consideration and would only be looking at it in its current use. Mayor Orr announced a brief recess at 7:44 p.m. to allow Mr. Ames time to place the Land Analysis on official City letterhead. Mayor Orr reconvened the meeting at 7:55 p.m. Motion to postpone failed with Mr. Roybal and Mr. Shanor voting "yes" and Mr. Case, Mr. Cook, Mr. Esquibel, Mayor Orr, Mr. Luna, Dr. Rinne, and Mr. White voting "no". Appreciation was expressed to Mr. Keizer for his patience during the sale and purchase process. Motion to approved carried. Voting "yes" – all members of the governing body with the exception of Mr. Shanor voting "no". (#7135)

[CA] Memorandum of Understanding between the City of Cheyenne, Laramie County, Wyoming and the City of Cheyenne Board of Public Utilities for the GIS Cooperative Budget Consolidation (City General Fund and County funds) – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and the Laramie County Conservation District for allocation of funds for planning, design and implementation of Crow Creek and its tributaries rehabilitation project. (1991-1994 1% Sales Tax per Resolution #4093 – funds moved in 2013 to the Specific Purpose Sales Tax Fund and proceeds from purchase and sale agreement of Lot 1, Block 1, Pat Griffin Second Filing – funds located in the Specific Purpose Sales Tax Fund) – referred to Finance Committee.

[CA] Purchase and Sale Agreement between the City of Cheyenne and the Laramie County School District Number One, for real property described as Lots 1 through 12, Block 2, Roberts Place Addition, City of Cheyenne, Laramie County, Wyoming, and more commonly known as 610 West 7th Street, Cheyenne, Wyoming, in the amount of \$569,780.00, to be used as a future elementary school (Revenue to the City) – referred to Finance Committee.

[CA] Development agreement between the City of Cheyenne and Brandon Swain regarding fire access (Northwest of Marshall Road and Storey Boulevard) – referred to Finance Committee.

[CA] Letter of Agreement between the City of Cheyenne, Police Department, and the United States Department of Justice, Drug Enforcement Administration, for locating and eradicating illicit cannabis – referred to Finance Committee.

[CA] Consideration to purchase between the City of Cheyenne, and Titan Machinery Company, Gillette, WY, for the repair of Street and Alley Vacuum Truck Block #5889 (Fleet Maintenance). Motion (per Consent Agenda) carried (in an amount not to exceed \$46,760.86).

[CA] Consideration of Bid #E-7-20 for furnishing As Needed Emergency Snow Control for the City of Cheyenne, Public Works Department (2015-2018 & 2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #E-10-20 for furnishing new computers and operating systems for the City of Cheyenne Information Technology Division (2015-2018 1% Sales Tax) – referred to Finance Committee.

Voucher Report. No comments were made.

Revenue Report. No comments were made.

Announcement was made of a Public Hearing to be held February 10, 2020 at 6:00pm in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for a portion of the S½ of Section 35, and a portion of the SW¼ of Section 36, T14N, R67W Laramie County, Wyoming (located between Old Happy Jack Road and Happy Jack Road, west of I-25).

Announcement was made of a Public Hearing to be held February 10, 2020 at 6:00pm in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for a restaurant liquor license application filed with the City Clerk's Office for C & Z LLC, d/b/a China Buffet, 1958 Dell Range Blvd., Suite D, Cheyenne, Wyoming.

Under other business:

Mr. Luna advised that he recently met with the City Attorney and inquired as to the current status of the demolition of the house near the roundabout located at 2247 E. 19th Street. Mr. O'Donnell advised the demolition process was delayed due to the required DEQ approval process involving contamination issues and is set to be demolished by June 30, 2020.

Mr. Roybal recognized the attendance of Boy Scouts Troop 221 and commented on his involvement with the Troop.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:02 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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